TAFADZWA CHOKOTO
Versus
THE STATE

HIGH COURT OF ZIMBABWE
MAWADZE DJP & ZISENGWE J
MASVINGO; 24 September 2025 & 20 November 2025

Criminal Appeal

W. T. Davira & *GJ Manyumbu*; for the Appellant.
B. E. Mathose; for the Respondent.

ZISENGWE J: The application for leave to lead further evidence on appeal is one that is seldom resorted to. In the present matter, however, such an application was made and granted and subsequently used to good effect by the appellant as the facts will soon demonstrate.

The appellant was convicted in the Magistrates Court sitting at Gweru ("the court *a quo*") in the wake of a contested trial. He was charged with the crime of stock theft, i.e., contravening s 114 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The court *a quo* found from the evidence that he had acted in concert with two other persons to steal six bovine beasts belonging to the complainant. It then proceeded to sentence him to ten years' imprisonment one of which was suspended for five years on condition that he does not within that period reoffend. That left him with an effective sentence of nine years' imprisonment. Aggrieved by both conviction and sentence he lodged the present appeal.

The grounds of appeal are couched in the following terms:

Ad conviction

a) The court a quo erred in convicting the appellant when the accused's defence was not rebutted.
b) The learned Magistrate erred in rejecting the defence version when it was not proved to be palpably false.
c) The court a quo erred in convicting the appellant when the state had failed to prove its case beyond a reasonable doubt.
d) The court a quo erred in convicting the appellant despite overwhelming evidence of possible fabrication.

e) The court a quo erred in convicting the appellant despite overwhelming contradictions in the state case.
f) The court a quo erred in believing the state case, despite it being most impossible and very unreliable.
g) The court a quo erred in playing down the dangers of falls incrimination arising out of the bad blood between the appellant and the police, which was even admitted in court and evidenced by the assault of the appellant by the police.
h) The Learned Magistrate erred in convicting the appellant when account is taken of the fact that this matter was poorly investigated by the police.
i) The Learned Magistrate erred in convicting the appellant when there was no direct evidence to prove that the appellant stole the beasts in question; they could have strayed into his herd.
j) The Learned Magistrate erred in dismissing the possibility that the complainant could have mistakenly identified the slaughtered beasts in question as his.
k) The Learned Magistrate erred in making a finding that the simple fact that the other beasts in question was found among the appellant's beasts, appellant had stolen them.

Ad sentence

The sentence imposed is too severe as to induce a sense of shock, more particularly in that;

a) The Learned Magistrate did not take proper consideration into the mitigatory circumstances of the case.
b) The Learned Magistrate did not give a suspended sentence to ensure the Appellant reforms and does not within that period commit any similar offence.
c) The Learned Magistrate erred in holding that this was a case where no special circumstances existed despite the fact that special circumstances did exist in the case.

In the wake of the filing of this appeal and as a prelude to the hearing of the appeal, the appellant filed a chamber application seeking leave of court to introduce new evidence on appeal. In this regard he sought to lead *viva voce* evidence from one Courage Mabheka. The application was not opposed by the respondent and was therefore duly granted.

The background facts

The brief synopsis of the key facts leading to the present appeal are these. The charge which the appellant faced alongside three co-accused persons reads:

> **"…Stock theft as defined in Section 114 (2) (a) of the Criminal Law (Codification and Reform) Act, Chapter 9:23**
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> "In that on the 23rd day of August 2023, and at Plot Number 6, Grassmead, Gweru, Tafadzwa Chokoto, Clayton Pedzisai, Tapiwa Mano and Innocent Ndlovu one or all of them unlawfully took six beasts, the property of Emma Hwanda, knowing that there was a real risk or possibility that Emma Hwanda may be so entitled and intending to deprive Emma Hwanda of her livestock or realising that there was a real risk or possibility that permanent deprivation may result."

A description of all six beasts was given which may be summarised as follows; all six beasts bore the brand mark "JL39" on the left foreleg and save for one, the all beasts bore no ear-cuts. They were of different colours and different horn structures.

In terms of the State Outline, the six beasts were stolen on 23 August 2023 from the complainant's kraal at Plot 6 Grassmead, Gweru where they had been penned for the night. They were then driven to the appellant's homestead at Plot No.75, Ngamo Gweru. Two of the beasts were then slaughtered and the carcases thereof taken to the appellant's butchery in Woodlands, Gweru.

Further, in terms of the State Outline the appellant was arrested the following day i.e. On 24 August 2023 following a tip off from a member of the public. Upon arrival at appellant's farm the police recovered one beast which was positively identified by the complainant and two fresh cow hides, which were equally identified by the complainant as belonging to some of the stolen beasts.

It is pertinent to note that the appellant's defence to the charge was that he had purchased two beasts from one Courage Mabheka. He explained that apart from being a farmer, he also runs a butchery business. He averred that as part of the latter business, he buys cattle from individuals which he would then slaughter and put up the meat for sale at his butcheries in the city of Gweru. It was in the latter context that he claimed to have purchased two bovine beasts from Courage Mabheka who at the time of his trial was fugitive from justice. Unbeknownst to him, the beasts he purchased from Courage Mabheka were stolen. He also denied that the hides recovered from his homestead belonged to the complainant's beasts.

The Evidence in the proceedings a quo

The State led evidence from four witnesses, namely the complainant (Emma Hwanda), Tatenda Mativenga, Tinashe Shoko, the latter two being the complainant's employee and neighbour, respectively and finally the Investigating officer of the case Sergeant Kizito Mahachi. Meanwhile the appellant and each of his co-accused testified for the defence.

It shall not be necessary to repeat the witnesses' respective accounts *in extenso*, suffice to say that when the complainant's beasts were discovered to be missing from the kraal on the morning of 24 August 2023, a report was made and a mission immediately mounted to track down the cattle. The search party comprised the complainant, her worker and her neighbour referred to earlier. They would soon be joined by the investigating officer. They followed the spoor/tracks which led them directly to the appellant's homestead some 30 kilometres away.

The complainant was able to identify four live beasts which claimed to be hers as well as two fresh hides bovine which she identified as belonging to two of her stolen beasts. three of the beasts were recovered in a bush some 5km from the appellant's homestead.

The evidence also showed that the appellant had a sizeable head of cattle of his own, approximately 30 in number.

According to the investigating officer when he arrived at the appellant's homestead with the search party, apart from four beasts being identified as belonging to the complainant, he observed the tale-tell signs of a recent slaughter. More importantly, he discovered two cattle hides cut in pieces concealed at an anthill within the appellant's homestead.

The name of Courage Mabheka, however, kept cropping up throughout the investigations as having participated in the commission of the offence.

According to the investigating officer, accused 4 implicated the appellant in the driving of the cattle from the complainant's plot- although he, i.e. Accused 4 he later became hostile.

For his part, the appellant maintained in his evidence that he had purchased the beasts from the then fugitive Courage Mabheka of Valley Farm. He indicated that as far as he could tell Courage Mabheka was in the immediate aftermath of the commission of the offence lodged in custody on drug related charges. He also accused the investigating officer of being biased if not outright hostile to him because of a previous misunderstanding over a woman. He therefore alleged that the investigating officer deliberately tailored the evidence to falsely implicate him in the commission of the offence.

He completely denied that the hides recovered from his homestead were of beasts appropriated from the complainant's homestead nor did they bear the brand mark 'JL39'.

When quizzed during cross examination on whether a health inspector was present when two beasts were slaughtered he insisted that one by the name Mangwiro was indeed present.

Needless to say, he completely denied having been involved in the driving of the complaint's beasts from her plot putting all the blame squarely on Courage Mabheka from whom he claimed to have purchased two beasts.

Accused 2 for his part equally laid the blame on Courage Mabheka whom he claimed to have brought the beasts to appellant's plot. He further testified that Courage Mabheka was paid the sum of $700 for two beasts by the appellant.

Tapiwa Mano, who was accused 3 in the proceedings *a quo* also gave evidence. He is Courage Mabheka's brother in law. He too implicated Courage Mabheka. At the time of his arrest he was resident at Courage Mabheka's plot at Happy Valley having arrived there a few days earlier from Zaka where he is ordinarily resident. It was his evidence that the two beasts slaughtered at the appellant's plot had been taken there by Courage Mabheka.

Most importantly, it was his evidence that the appellant purchased the beasts in question from Courage Mabheka. He denied any involvement in the taking of the cattle nor their driving and subsequent sale to the appellant.

The appellant's employee Innocent Ndlovu who was arraigned as accused 4 in the proceedings *a quo* also took the witness stand. He, as with his co-accused denied ever participating in the appropriation of the complainant's beasts. Of significance he testified that the beasts which the complainant later identified as hers were brought to the appellant's farm by Courage Mabheka and accused 3. He completely denied fabricating his evidence ostensibly to falsely exonerate the appellant.

In its judgment the court *a quo* summarised the evidence led, analysed it and made the following major conclusions. Firstly, that the stolen cattle had been properly described and identified by the complainant. Secondly, that one of the stolen beasts had been recovered at appellant's homestead. Thirdly that the beasts had been slaughtered without the requisite

official clearance, Finally, that the beasts had been slaughtered the same morning they had been brought and in a rather unorthodox and secretive fashion.

The court *a quo* concluded thus:

> "In conclusion, the evidence by the State leads to the conclusion that the cattle were stolen on the night of 23 August 2023. This was discovered in the morning of 24 August 2023 and the recovery of the first cow and the 2 hides took place on 25 August 2023."
>
> The closeness in time from the theft to the recovery points towards the conclusion that those that participated in the driving and slaughtered are the ones that stole. These are accused 1,2 and 3. As for accused 4, I find no link."

The court *a quo* then proceeded to acquit accused 4 but returned verdicts of guilty in respect the rest. It proceeded sentence each as aforementioned.

It was then that the appellant mounted this appeal on the grounds highlighted hereinbefore and as a precursor to the presentation of arguments sought and obtained leave to lead fresh evidence on appeal. The evidence which he proceeded to lead was from none other than Courage Mabheka himself!

The evidence on appeal: The evidence of courage Mabheka

Courage Mabheka completely exonerated the appellant in the theft of the complainant's beasts. At the time of testifying in this appeal he was serving for the very same offence for which the appellant was convicted. After being on the run for several months he was arrested and charged with the theft of the complainant's cattle. He indicated that he was initially charged with the theft of six of the complainant's cattle. However, he tendered a limited plea wherein he admitted stealing only two of those beasts. The limited plea was accepted by the State with the result that he was convicted of the theft of only two beasts. These are the two beasts that he sold to the appellant.

He gave an elaborate account of how acting alone he stole and disposed of the said bovines. In this regard he testified that he appropriated six cattle from the complainant's homestead and drove them towards his plot at Happy Valley. On his way and at Vhungu river valley he abandoned three of the beasts and arrived with the remaining three. He indicated that he could only positively identified two of the bovines but could not do the same with the third. It was his further evidence that upon arriving at his homestead he inquired from his neighbours

if they knew anyone who was in the business of buying cattle and that is when he received the appellant's phone number and proceeded contacted him.

According to him, the following day the appellant visited his homestead to inspect the cattle and proceeded to purchase two of them for US$700. Most significantly, he maintained that the appellant was completely unaware that the cattle did not belong to him, let alone that they had been stolen. He testified that as a matter of fact he misled the appellant into believing that the beasts were his. Thereafter he was assisted by one Tapiwa Mano (Accused 3) to drive the bovine beasts to appellant's home. As for the third bovine, it was his evidence that it remained with his own herd of cattle. He stated categorically that he was not influenced to exonerate the appellant but that his conscience could not allow him to see innocent people languishing in prison for an offence they did not commit. He implored the court to release the appellant.

During cross examination he clarified that a few days after the commission of the offence he proceeded to his in-laws' place in Zaka where he would remain ensconced until his arrest in February 2024. He stated that he used $500 of the purchase price of the beasts to settle his lobola arrears

Respondent's response

In light of the evidence of Courage Mabheka, the respondent which had initially opposed the appeal, all but capitulated. Counsel for the respondent concurred with the submissions made on behalf of the appellant that in light of that exculpatory evidence, the conviction was unsafe in that it could not be said, albeit *ex post facto* that the State had proved its case beyond reasonable doubt and that therefore that the conviction had to be vacated. In this regard counsel for the respondent conceded that in all probability, going by Courage Mabheka's uncontroverted evidence, the appellant was unaware that the cattle he purchased from the latter were stolen. This was particularly so given that the two beasts in question were penned together with Courage Mabheka's own cattle in the latter's kraal.

Other factors which were pointed out by the parties as militating against the conviction were that the appellant was apparently shown a stock card by Courage Mabheka, which supposedly proved his ownership of those cattle and that at the time of the appellant's trial, Courage Mabheka was at large

Ultimately, we find the concession made by the respondent to be sound in light of the evidence presented to the court by Courage Mabheka. There was nothing presented by the State to gainsay his evidence exculpating the appellant. It is reasonably possible from the totality of his evidence that Courage acted as a lone ranger cattle rustler in stealing the complainant's cattle before falsely presenting them to appellant as his own. The appellant, acting on that false information, bought the bovines.

It is also not lost on us that Courage Mabheka's evidence tallies with the appellant's defence of having innocently purchased the bovine beasts in the *bona fide* but mistaken belief that the beasts belonged to Courage Mabheka. Accordingly, the conviction cannot stand and, in the result, we make the following order:

1. The appeal against conviction succeeds.
2. The decision of the court a quo convicting the appellant is hereby set aside, and the sentence quashed.
3. The verdict returned by the court aquo is substituted with the following:
   "*The accused is found not guilty and is acquitted*."

MAWADZE DJP Agreed

Gundu, Dube, Pamacheche Legal Practitioners, appellant's legal practitioners.

National Prosecuting Authority, respondent's legal practitioners.